

File No.: EXP202212476

RESOLUTION No.: R/00290/2023

Having reviewed the complaint filed on October 16, 2022, with this Agency by A.A.A., (hereinafter the complainant), against COSTA CROCIERE S.P.A. BRANCH IN SPAIN, (hereinafter the respondent), for not having duly attended to their right of access.

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised their right of access against the respondent with NIF W0052669I and their request, as stated by the complainant, did not receive the legally established response. They provide various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has established a mechanism prior to the admission of complaints filed with the AEPD, consisting of transferring them to the Data Protection Officers designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not designated them, the complaint was forwarded to the respondent entity for analysis and to provide a response to the complainant and this Agency within one month.

On December 22, 2022, a letter from the respondent was received by this Agency, which does not substantiate the attention to the exercise of the right of access raised by the complainant.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on January 16, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have been initiated by said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing process, so that within ten working days it could present any allegations it deemed appropriate.

Said entity submitted allegations stating, in summary, that they have attended to the right and that the requested recordings are only kept for one month and are no longer available; in their response, they refer us to the one already sent in December 2022.

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FOURTH: The allegations presented by the respondent have been examined and are subject to transfer to the complainant, so that, within fifteen working days, they may formulate any allegations they consider appropriate. The complainant insists, stating that the requested right of access has not been attended to.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the

enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, to provide a response to this Agency within one month, and to substantiate having provided the complainant with the due response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the period for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant.”

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procedure. After this period, the interested party may consider their claim accepted.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that need to be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the current procedure the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the “data or processing activities to which the request refers.” The right will be understood as granted if the controller provides remote access to the data, considering the request

as attended (although the interested party may request information regarding the aspects provided in Article 15 of the GDPR).

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The exercise of this right may be considered repetitive on more than one occasion during the six-month period, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information on the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information on transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect third-party data.

In the case analyzed here, we will begin by stating that only the matters related to the requested right of access will be taken into account; the other issues between the parties will not be addressed as they fall outside the scope of this Agency's duties.

We have a requested right of access regarding a telephone recording between the parties. According to the documentation submitted, the call took place on July 25, 2022, and the request for the recording was made on August 12, 2022. There is an email response from the respondent that confirms this.

Namely:

“...I regret to inform you that due to company policy it is not possible to send you the recording as it involves other people; we can only send you the transcript of what you said...”

However, they later communicated that the recordings were deleted after a month and that they no longer had the requested recording. “...Regarding the request for access to the data provided initially by the Claimant and in relation to the recording of the telephone conversation held with the operator, we would like to point out that, in accordance with the principle of necessity and data minimization under Article 5 of the GDPR, the data is deleted after 30 days, as stated in our previous communication. Since the conversation took place on July 25, the data was deleted 30 days later...”

Therefore, we have an unaddressed right of access initially because the responding party considered that they could not provide the complete recording of the conversation to preserve...

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the identity of the interlocutor and, second, because it claims to have deleted the recording due to the time elapsed.

Regarding the first objection, the respondent must know that a transcription of the conversation held addresses the right and protects the identity of the person who spoke with the claimant. And second,

according to the dates provided, despite claiming to delete recordings after 30 days, in the case at hand, they were deleted much earlier.

Based on the above, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, it is appropriate to uphold the claim that originated this procedure, as it is believed that the right of access was not carried out properly.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. and to urge COSTA CROCIERE S.P.A. BRANCH IN SPAIN with NIF W0052669I, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right of access or a reasoned denial indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to COSTA CROCIERE S.P.A. BRANCH IN SPAIN. In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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